

STATE OF NEW YORK

3864--A

2025-2026 Regular Sessions

IN SENATE

January 30, 2025

Introduced by Sen. GIANARIS -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- recommitted to the Committee on Judiciary in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law, in relation to the publication of opinions rendered in criminal causes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "criminal court opinion transparency act".

3 § 2. Subdivision 1 of section 212 of the judiciary law is amended by
4 adding a new paragraph (gg) to read as follows:

5 (gg) Submit to the legislature and the governor a report on or before
6 the fifteenth day of January, two thousand twenty-seven, including: (1)
7 an evaluation of the feasibility and benefit of publishing suppression
8 rulings rendered by trial-level criminal courts and/or collection of
9 data regarding such rulings; (2) whether the publication of additional
10 decisions and/or collection of data would improve the practice of law;
11 (3) an evaluation of the means by which such publication and/or
12 collection of data may be effectuated to improve transparency and the
13 public understanding of such courts; (4) an assessment of any further
14 resources that would be necessary to support increased publication or
15 data collection; and (5) recommendations regarding legislation and
16 administrative measures that could be taken.

17 § 3. This act shall take effect on the one hundred eightieth day after
18 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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